

VOLUME 1, No. 3

MARCH, 1911

THE REVIEW

**A MONTHLY PERIODICAL, PUBLISHED BY THE
NATIONAL PRISONERS' AID ASSOCIATION
AT 135 EAST 15th STREET, NEW YORK CITY.**

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A VALLEY OF LIFE^[A]

If some one of the prison officials of New York were to suggest the turning out of hundreds of the prisoners on Blackwell's Island and Sing Sing into a colony in the fertile valley along the Hudson or the Mohawk river, under the care of a superintendent and a half dozen assistants without an armed guard, the inhabitants not only of New York state but of all the states in the Union would immediately hold mass meetings of protest and set their political organizations to work to have the official making the suggestion removed from office and incarcerated in an insane asylum. This would be the action taken in this far advanced, civilized country.

Yet in the Philippine islands this very thing has been done, and done with success. It has been done with a people said by leading officials of this country and other countries to be incapable of self-government.

To be explicit, there are today 1,423 prisoners, or "colonists," as they are now termed—prisoners of all classes and sorts, serving terms of from five years to life imprisonment, and for crimes from petty thievery to murder—living without a guard in a small, fertile valley along the river of one of the islands in the archipelago just south of Luzon, the largest island, of which Manila is the capital.

Here the 1,423 convicts live, not alone, isolated as the prisoners of Siberia are, but much the same as they would have lived had they never committed a crime against the community—in peace, prosperity and happiness, with their families, engaged in the pursuit of agriculture—and the only guns on the place are those mounted at the superintendent's office for saluting purposes and the "six-shooter" the superintendent keeps locked up with his cash in the safe of the penal colony office.

There is a guard on the reservation, but it is only a police guard, and the only arms its members carry are a small policeman's club, which is more ornamental than useful.

With this lack of military display on the part of the authorities, there has been but one outbreak or attempt at escape, and that occurred soon after the

colony was first established and before the valley had been drained and rid of malaria and cholera. Since that first outbreak and the subsequent capture of all but one of the nineteen who escaped (and that one died) there has been peace and quiet on the reservation.

It was in 1904 that George N. Wolfe, then warden of Bilibid, the “bastile” of Manila, now director of the bureau of prisons of the Philippine islands, found the prison fast becoming overcrowded. He had male and female inmates confined there who were serving sentences for all manner of crimes. He was confronted with the problem of finding an additional housing place. He took the matter up with the superintendent of prisons with the result that it was determined to establish a colony of prisoners under a guard.

Accordingly, in November, 1904, the superintendent of prisons appointed Warden Wolfe, Prof. William S. Lyon, horticulturist of the bureau of agriculture, and Dr. Arlington Pond, star pitcher on the old Baltimore Oriole baseball team in the McGraw and Keeler days, then city health officer of Manila, to select a site for a penal colony.

After hunting up and looking over several sites the committee finally selected Iwahig, a small valley on the Iuhuit river on the southern point of the island of Palawan and directly opposite the town of Puerto Princesa. The valley is about ten miles long and contains something like 270 square miles.

The site selected, sixty prisoners of all classes and confined for all manner of crimes, most of whom were hardened criminals, were sent there under an armed guard.

At first health and discipline were not good. Malaria and cholera made great inroads upon the little band. The valley, while of fertile soil, was covered with water more than half the year, and that which was not under water was densely overgrown with bamboo timber. The first sixty dwindled down to less than one-third that number. Others were sent to take their places and they, too, became either infirm or more hardened criminals. Conditions got worse, and one day there was a mutiny, in which nineteen of the prisoners made their escape. All but one of the nineteen were captured and sent back to the colony. Things became so bad that Warden Wolfe decided to make a

change in the superintendent of the colony, and he made a request therefor to the superintendent of prisons.

At that time the penal institutions of the Philippines were under the jurisdiction of the secretary of the department of commerce and police. They were later placed in the bureau of public instruction and under the bureau of prisons.

The governor general of the Philippines in 1906 appointed Major John R. White of the constabulary superintendent of the colony.

Major White immediately set to work to cure the evils. He got several physicians and sanitary officers of the Philippine government to lay out general plans for draining the valley, so as to rid it of the malaria and cholera. He was more than successful; in fact, in 1907, when he turned the colony over to the present superintendent he had obliterated both diseases. Major White also started a radical reform in the system of handling the prisoners, and instead of driving them and herding them in a few buildings he used kindness.

The real change from a penal colony to a "Golden Rule" colony took place in the latter part of 1907, when Carroll H. Lamb was appointed superintendent.

Mr. Lamb had ideas of handling the prisoners that were different from those of his predecessors. He exercised from the first a humanitarian policy, and instead of asking for the worst behaved of the convicts of Bilibid he asked for the "trusties," who were the greater in number. His requests were granted.

Superintendent Lamb consulted with sociologists and leading criminologists, after which he laid down for himself and the prisoners the following principles by which a good convict might be made a good citizen:

"Proper environment and association, fixed habits of conduct and industry, intellectual and moral instruction and industrial and practical teachings."

He instilled these principles into himself and into the convicts, as the method to fit them soonest to return to society, cured mentally and physically, and to teach them to be law-abiding and self-respecting citizens.

Mr. Lamb devoted much study to the character of the Filipino and found him, as many others have found him, easy to manage, especially where tact and kindness is used. He also found that the primitive civilization of the Filipino people and their natural bent toward agriculture aided in the application of the principles he laid down.

He began by reducing the restraints and increasing the independence of the colony as a whole. He also began the utilization of agriculture as the burden of the convicts' labors, and impressed upon them the idea that not only were they working for the government against which they had committed offenses but for themselves. He pointed out that they would not only gain virtual freedom at once, but would participate in the earnings of the colony.

His first lot of prisoners numbered more than 100, and they were, as in the early history of the colony, made up of all classes of criminals, but men who had been given certain liberties in Bilibid for good behavior. He had as assistants two Americans, the oldest of whom was less than 30, and the youngest of whom was but 21, a Filipino band director, a Filipino physician, a Spanish padre for chaplain, and a matron. The matron was necessary, as among his prisoners were some twenty women.

Today, three years since Mr. Lamb first went to Iwahig, there are 1,423 prisoners. He still has his two American assistants and the two Filipino assistants. In addition he has thirty-one petty officers, all of whom are prisoners. Two of these petty officers are "lifers," serving sentences for murder in the first degree; two more of them are serving long terms for offenses almost as serious as murder, and the rest of the thirty-one are men who have more than five years yet to serve.

Every one of these thirty-one petty officers lives in his own home, has his wife and family, and is a director in the colony's bank, established last year for the deposit of the colony's funds and the gratuities saved by the prisoners. These gratuities are paid monthly, and as the convicts raise everything they use, even to beef and to the leather shoes they make from the hides of the cattle, their gratuities amount to a considerable sum.

Each of these petty officers is in charge of a certain number of prisoners called squads. The squads in turn are formed into brigades or battalions and commanded by the superintendent and assistants. The distribution of all

prisoners is about the same as in a military garrison, where a company of soldiers is divided into squads in charge of a corporal and a sergeant.

The petty officer is responsible to the superintendent for the deportment of the members of his squad. The general orders, which are really regulations, are known by every colonist, and once a month must be recited by him to his petty officer.

In the Philippine islands there are many more holidays than in the United States, and on each of these holidays all work is suspended and the colonists are allowed to engage in sports, church fiestas and social intercourse. The American game of baseball is the principal sport. There are four crack teams in the colony, among the players being several American convicts. Each dry season the superintendent gives a pennant to the winning team and a small sum of money to be distributed among the players. The rivalry for the "flag" is sometimes as keen as in some of the games between teams in the United States.

The colonists have their own court, too, with the superintendent as a supreme judge. He acts finally and independently of the lower or convict court, but with one or two exceptions his action has always confirmed that of the lower court.

At this court are tried such cases as the police report to the petty officers. Last year there were 102 cases before this court, ninety-four of which were minor, or for slight infraction of a rule. The punishment meted out was generally a loss of gratuity and a mark against the individual to be used against him for any future offenses. In each of these the convict court sentenced the culprits to be returned to Bilibid, and Superintendent Lamb approved their decision and returned them. Six of the eight have since been sent back to the colony at their request and on their promise of good behavior.

A bill appropriating \$50,000 for a reformatory for women, and authorizing the government to appoint a commission to secure plans and specifications has been proposed in the Connecticut legislature.

DEFECTIVE DELINQUENTS

[Abstract of Recent Article in The Outlook]

The undoubted presence among so-called juvenile delinquents of a considerable number of mentally defective children, the utter lack of proper institutions to which to commit such defectives and the inadequate provision made for a timely discovery of such defectiveness, were treated recently before the New York Academy of Medicine by Mr. Ernest K. Coulter, clerk of the Children's Court of New York County. After calling attention to recent studies which show that 33 per cent. of the inmates of Bedford Reformatory for Women, and 39 per cent. of the inmates of Elmira Reformatory, are said to be mentally defective, Mr. Coulter, out of his own experience with 80,000 cases, adopted two per cent. as a conservative estimate of the proportion of mentally defective children among the total of those arraigned for conflict with the law.

This percentage would bring annually into the Children's Court of New York County alone, two hundred defective delinquents. Mr. Coulter then stated that "while there are more than thirty institutions to which the court in New York County can commit children, there is not one where those of the mentally defective type can be sent on legal commitments." The only course open to the court, therefore, is to thrust the mental defective into an ordinary reformatory institution. In providing no other treatment for this type, "the state is blind," said Mr. Coulter, "to its cruelty to the child, the injustice to the institution, and the menace to the community. In this blindness and parsimony the state is thus sowing a continuous crop for its prisons and alms houses. If the public cannot be aroused to the human rights violated by this course, perhaps the money cost will one day stir it from its lethargy."

There is no adequate provision for even the discovery of such deficiencies among those children who are taken into custody, said Mr. Coulter. "If while these defectives were still children," he declared, "the causes of the abnormal mental condition which predisposed them to prey on society could have been removed, many of them would have been saved to useful

citizenship. With such cases the time for relief, if curative or ameliorating remedies are possible, is in youth and at the first indication of criminal tendencies. * * * The causes of the overwhelming tendencies that array them against society may often be determined by pathological and physiological and psychological examination. Such causes, for instance, may be the existence of adenoids, which retard normal development, render the child irritable and mentally lazy; they may be the absence of thyroid glands, which brings about cretinism; they may be due to hereditary syphilis, which often results in a lesion of the brain. The children of this class are not responsible for the acts that lead to their commitment to reformatories. Taken in childhood, these causes may often be removed and the victim restored to society a normal being. A correct diagnosis is absolutely essential. Without a correct diagnosis no rational treatment is possible.”

AN INMATE'S STORY

It is a principle of evidence that the testimony of a witness with a favorable bias is to be taken at a discount, whereas the admissions of one with an unfavorable bias are of face value. Therefore, when an ex-prisoner speaks good of the prison in which he has been incarcerated, we listen with nearly full credence. Recently the Philadelphia *North American* published the story of a forger who had served his term in the state prison at Charlestown, Mass.

“That was a red-hot prison fifteen years ago,” says the *North American*. “It was infamous as a hell on earth, from the punishments, which included stringing up by the thumbs, the humiliating paddle and the water cure by means of the fire hose turned on the recalcitrant in his tiny cell, to the prisoners’ own contribution to the pandemonium in the way of riots and stabbing affrays. The discipline was as shamefully farcical as the prison officials were brutal.”

Then the conscience of New England rebelled, continues the *North American*. A change in wardens made General Benjamin F. Bridges head of the institution and N. D. Allen deputy warden. These men abolished all cruel and inhuman punishments, stopped regarding the prisoners as they would wolves, treated them like men of “decent honor and probity,” and established, in a word, the “friendship system.” The spirit and atmosphere of the place changed.

The story of the treatment now accorded the prisoners in this institution, as told by the time-expired forger mentioned above, is in part as follows:

“The convict learns, the minute he enters, that the whole world is not against him.

“‘I don’t care,’ Mr. Allen says to him, ‘what your past life has been. We intend to take you as you are, and we’ll treat you as a man until it is shown by your actions that our confidence is misplaced. Your treatment here will rest entirely with you. We will give you every help in our power to equip you for the struggle you will have to face at the time of your release.’

“Can you conceive the effect of such an exordium on a man whose spirit is sullen in its resentment against the society that has begun to punish him? His feeling of antagonism vanishes. He realizes that no needless humiliation awaits him. He is known by his name, not by a number. He can wear his hair and beard as he chooses. He can shave with his own razor—or he can go to the prison barber. There is no lockstep march to mess. He quits work ten or fifteen minutes before dinner and chats with his fellow-workmen as freely as if he were on his job outside.

“Apart from the regular school there is a correspondence school service, which teaches languages, mathematics, bookkeeping, stenography, custom tailoring, designing, arts and crafts and mechanical and electrical engineering. The convict can join the prison band or orchestra, or take a course in painting, if his talent inclines either way.

“There are two first-class baseball teams and Saturday afternoon in the prison yard lets everybody loose to root as joyfully for his favorite team, and as loudly, as if he’d paid his half dollar to chase the pennant at home. During the winter, vaudeville and moving-picture shows take place in the chapel, which I have known to be completely darkened, simply on the word of honor of 860 convicts that they would take no advantage of the gloom.

“The visits of friends are not the cruel mockeries of a steel screen and a keeper’s open eye and ear. The prisoner can sit side by side with his visitor and talk free of jealous watch, for a full hour. He is permitted to buy luxuries—fruit, pies, candies, tobacco—and the prison will take care of them for him so that they sha’n’t spoil. He has his private bank account and can earn money by work for himself after the regular hours. They can even trade among themselves, by a special transfer system. When their private supplies arrive—two and three tons some days—the prison office looks like a grocery store.

“If a system has ever been devised which has succeeded in transforming a convicted criminal into an honest man, this is the one. There are very, very few men who go out of Charlestown prison who, at the time, are not honest, law-abiding citizens.”

Once, when a visiting warden saw General Bridges’ convicts pass him and his host, he remarked:

“Why, say, general, these men don’t look like prisoners. They walk upright and look you straight in the face. I haven’t a man in my penitentiary who doesn’t look hangdog.”

“They look at us like men,” rejoined Bridges, “because they feel like men. And they feel like men because they are treated like men.”

“Oh, that may all be, general. I have men that stare at me sometimes, too. But these prisoners actually smile and laugh at you. Maybe they’re just feeling good. But what gets me most is that you speak to them just as they do to you.”

That criticism took all the wind out of the general’s intellectual sails. All he could do was to answer lamely:

“Why, my dear sir, if I didn’t speak to them they’d be offended. They’d imagine I was angry over something.”

THE BOSTON NEWSBOYS' TRIAL BOARD

After four months of existence the Boston Newsboys' Trial Board, though still an experiment, is justifying its existence. A glance at its nature and functions may be of interest.

It was formed to deal with newsboys under 14 years of age who were charged with violation of the terms of their licenses. The licensing of newsboys in Boston is entirely in the hands of the Boston School Committee, and that body alone has power to revoke such license. Therefore, under the former system, even after the offending newsboy, with his parents, had been summoned before the juvenile court and the heavy judicial machinery of complaint, summons, service, investigation, hearing, and verdict had been brought to bear on a trivial offense, before the boy's license could be revoked the finding of the court had to be reviewed and approved by the school committee. This procedure took the boy away from school, took his parents from their work, cast a stigma on the boy and his family for having been called to court, and called for activities out of proportion to the offense.

The Trial Board, devised to meet these conditions, is composed of five members—two adults, appointed by the school committee, and three newsboys, elected by the licensed newsboys in the Boston schools. The only connection between the court and the Boston Newsboys' Club is that the latter offers two rooms for sitting of the court, this circumstance operating, of course, to bring the tribunal closer to the confidence of the boys themselves. The court sits once a week—every Friday night at 7:30. An aggrieved newsboy has previously brought his case before the clerk of the Trial Board, who calls it to the attention of the judges, and if the case can be settled without formal procedure against the accused, this is done. Otherwise, the court will hear the testimony and render a verdict. In effect, the court can, by way of punishment, revoke or suspend the license of a guilty newsboy. As a matter of fact, it can only recommend to the school committee that such action be taken, but such is the confidence of the committee in the court that the recommendations of the latter are always

carried out. In cases where the offender defies the Trial Board, the latter can, of course, always fall back on the police and the juvenile court.

The Trial Board thus has power to do everything which the juvenile court may do to the offender, except to fine him. Special summonses, warrants and other court papers have been formulated and printed for the Board. It is not part of the legally constituted judicial machinery of the city or state, yet its findings have all the weight of finality.

Since its organization ten years ago, the Prisoners' Aid Association of Washington, D. C., has benefited over 28,000 prisoners, 9,000 of whom were returned to their homes. The records show that 90 per cent. of those aided financially have returned every cent advanced to them by the association, while the majority of the others were unable to repay the association.

A recent report made by the parole officer of the Board of Public Welfare of Kansas City, Mo., shows that 547 persons are paroled from the workhouse and Leed's Farm. These persons are earning an average of \$10 per week. All have been put at work except 70, and of these 20 are too ill to be employed. The parole system is said to be saving the city \$392 a day.

IN THE PRISONERS' AID FIELD

THE MARYLAND PRISONERS' AID ASSOCIATION.

(Although the following article is an account of a single association, it contains material of such general interest that it seemed desirable to print it in full. The article appeared in the forty-first annual report of the Prisoners' Aid Association of Maryland, for the year ended April 30, 1910.—THE EDITOR)

The objects of the Prisoners' Aid Association of Maryland are the uplift and rehabilitation of the criminal.

When we consider that it is the only agency in the state whose mission is that of giving aid to hundreds of discharged prisoners each year and the only organized body equipped for the work of systematically caring for offenders who are placed on probation by the courts, we believe it important that information should be carefully compiled by the Association upon the actual work that it is doing and upon the larger subject of the treatment of the criminal.

Morrison has well said, "The supreme if not the only object of a properly constituted penal system is to prevent the offender who has been once convicted from repeating the offense,"—so the importance of our work; but just as important are the methods used in our penal systems in aiding rehabilitation of the prisoner.

Our prison and reformatory managements should stand in the same relation to the violator of the law as does the management of our insane hospitals to the inmates entrusted to their keeping.

The purpose of both is the protection of society; the aim of both should be such treatment as will if possible rehabilitate the unfortunate so that he may regain his position in society.

In the prisons and reformatories the inmates should be taught the habits of industry and obedience to law and order, under humane and strict discipline.

There should be a complete separation of the first offender and the individual subject to reformation, from the weak-minded, physically deformed, and old and confirmed criminals; a reformatory for boys and first offenders, a separate prison for women and an industrial school for girls, with a parole system in each of the institutions.

In many of our states, including our own, the definite sentence still remains as a part of the criminal code, the prisoner being discharged at the end of his sentence, less good time allowed.

Many of our states, however, are adopting the indeterminate sentence with provisions that the prisoner may be released on parole. There is a great difference in the attitude of the public towards the individual released and known by society as a discharged convict and the individual released on parole.

How fortunate the person who under the indeterminate sentence has served one-third or one-half of his allotted time and by his advancement in industrial training and education and obedience to the rules of the institutions when he leaves on parole, with the management back of him stating to his employer that it believes in him and advises giving him a trial. The employer of labor will not only give such a person a position when he comes so recommended, but will take a friendly interest in the probationer and assist him to regain his lost position in society.

The recommendation handed by the prison management to a man the day he is discharged from the institution under the old law of fixed sentences bears for the critical eye the inscription of dishonor, doubt, discouragement.

The recommendation of the management given to a man released under a parole system bears the words of confidence, faithfulness and obedience to the laws and regulations of the institution. It is only natural that the person vouched for in this manner will receive consideration at the hands of the public while the person who has only the reputation of being a discharged convict and who has paid the penalty must move on.

The life of men when they come to the Home of the association at 334 St. Paul street, is made as simple and as homelike as possible. They rise at 5:30; hours for meals are:—breakfast 6, dinner 12, supper 5:30. At 10:15

the lights are out and the doors are closed. Everybody is supposed to be in at this hour.

Each guest of the Home must make his own bed and assist in cleaning up the Home before breakfast.

At 7:30 each man not employed must be ready for the position secured for him by the employment secretary.

Smoking is allowed in the reading room of the Home; no cigarette smoking, however, is allowed. No profane or obscene conversation is tolerated. No person is allowed in the Home with the odor of intoxicants on his breath or who is in an intoxicated condition. No loafing is permitted in the Home.

We have a library, with books and periodicals, where the men may read after supper and on Sundays.

All men who are temporarily making this their Home are urged to attend religious services on Sunday at such place of worship as they may choose. All of the men are invited to attend the weekly religious services held at the Home, but they are not compelled to do this.

The food given the men is plain but substantial and wholesome, well prepared, and there is no limit as to the amount for each man.

The religious and literary meetings held on Tuesday and Friday evenings of each week in the assembly room of the Home have done much for the uplift and rehabilitation of the unfortunate men who have come to us. These meetings have grown in favor until the attendance at times has been seventy-five; our total attendance for the year reached two thousand five hundred and eighty; the number who asked for prayer at these meetings was four hundred and sixty-two.

In finding employment for those who come to us the adaptability of the men or women for some particular trade, clerkship or housework, is always taken into consideration, as we feel that it is much better to have people working in their special line of work than to be attempting something with which they are not acquainted. We also try as far as possible to see that the environment where we place them to work is of the best.

We have been greatly assisted in placing these men by the co-operation of the employers of labor in the city, for which we are very grateful. Without

the help and good-will of those who employ labor it would be almost impossible for us to secure positions for them.

We have placed many of our men in positions of responsibility and trust, and their employers speak of them in the highest terms.

Maryland was one of the first states of the Union to adopt a system of probation for first offenders, and its juvenile court has accomplished splendid results. The operation of the system for adult probation is yet to be worked out along correct lines.

The Prisoners' Aid Association hopes that probation of adult prisoners by the courts will be more extensively used. Much good is now being accomplished along this line by the courts recognizing the services of the association in acting as parole agent for the adult offender. We are now frequently asked by the courts to make a careful study of a case on hand before the prisoner is sentenced.

When a man has been paroled we endeavor to find him suitable employment, better his home conditions, if possible, and wield a helpful and friendly influence over him, having him make to us monthly reports regularly until such time as the courts deem advisable to give him his final discharge.

Prisoners convicted of embezzlement or larceny are often paroled on condition that they pay back the amount of the theft in instalments.

We hope that the parole system will be extended throughout the state, and believe that when its benefits are more fully understood the system will become general.

The Association provides religious services for the inmates of the House of Correction and Baltimore City Jail, representatives of all denominations assisting in making these meetings interesting and instructive. It is estimated that not less than 12,000 unfortunate men and women pass through these two institutions each year.

The proper observation of religious services and the doing of personal work in the institutions of the state bring to those of the respective faiths a power for good which nothing else can bring. Such work systematically carried forward is the greatest factor in our penal system for the reformation and uplift of this class of our neglected and unfortunate citizens.

Resume of Year's Work.—Number placed on probation, 265; number terms expired, 151; leaving a balance on probation April 30, 1910, 114; estimated wages earned by men on parole, \$36,395; number of women on parole April 30, 1910, 7; number of night lodgings given at the Home, 5,631; number of meals furnished, 17,532.

Applications for assistance received at the Home for the year as follows:

From the Baltimore City Jail, 186; from Maryland House of Correction, 133; from Maryland Penitentiary, 22; from probationers, 15; from miscellaneous, 21; total 377.

Work of the Employment Department.—Families visited, 32; temporary employment found, 221; firms interviewed, 74; men interviewed in Baltimore City Jail, 927; men interviewed in Maryland Penitentiary, 10; paroles interviewed, 45; visits made for investigations, 41; total, 1,353.

Receipts from all sources, \$9,260.28; Expenditures (see Treasurer's report), \$8,647.04; balance on hand and in bank May 1, 1910, \$613.24.

SOME INTERESTING THINGS IN VIRGINIA.

As compared with 864 whippings administered to prisoners in the Virginia penitentiary during the first eight months of 1909, only 133 were administered during the corresponding period in 1910, according to the second annual report of the Board of Charities and Corrections of that state. The report states that this more humane administration has resulted in greatly improving the discipline of the institution.

It is one of the duties of the board to visit paroled prisoners, though lack of money has hindered this phase of the work. Recommendations looking to an improvement in the present parole system will be made to the next General Assembly. During the year ended September 30, 1910, the parole work of the board was as follows:

No. paroled prisoners reported to Board	270
No. investigated	161
Dead	4
Satisfactory	90
Unsatisfactory	46
Returned to the Penitentiary	3
Ran away from employers	13
Failed to report to employers	5

The Board favors the establishment of a home for inebriates, for whom no state provision is made at present. Seventy-five inebriates and drug fiends are cared for yearly in hospitals for the white insane, at a cost of \$9,000 per annum.

The Board finds a need of larger co-operation between the persons in charge of institutions for delinquent and dependent children, of which there are 49 in the state. Studies of the causes of juvenile destitution and of the amount of juvenile defectiveness have been undertaken by the Board. An investigation of 31,640 school children in the state revealed that 17,830, or

56 per cent. of those examined, were more or less defective, either physically or mentally.

WORK OF A MUNICIPAL PAROLE BOARD

The board of pardons and paroles of Kansas City, Mo., has issued the following summary of its work during the period from January 1, 1909, to April 13, 1910:

Total persons sent to work house, 3,202; white men paroled, 770; white women paroled, 47; colored men paroled, 267; colored women paroled, 25. Total number paroled, 1,109. Number re-arrested and returned to work house for violation, 114; amount paid through this office for the support of families, \$2,975.67.

The board of pardons and paroles, which was created by an ordinance of the city of Kansas City, began its duties about January 1, 1907. It consists of three members, unpaid, who are appointed by the mayor. It has a paid secretary. It is the duty of the board to recommend that paroles be granted to misdemeanants convicted in the municipal court and sent to the work house, whenever, in their judgment, such parole seems wise. The mayor must grant the parole. Paroles may be revoked, however, at the discretion of the secretary of the board.

Paroled prisoners are asked to make written reports to the board once a week. A man who fails to report is notified by mail, and if he continues delinquent in this respect, his case is handed over to a parole officer. The board employs one investigator and one parole officer.

The board has under its direction a municipal farm of 135 acres, which is used in both the physical and moral rehabilitation of a number of the paroled men.

YEAR'S WORK OF THE MASSACHUSETTS SOCIETY

During the year ended Nov. 30, 1910, 2,114 male offenders who had served terms of imprisonment varying from eight days to twelve years, in the prisons of Massachusetts, were aided in their efforts to regain in society a

place that would provide for their future support, according to a report recently issued by George E. Cornwall, agent for the Massachusetts Society for Aiding Discharged Convicts. One thousand and thirty-one of these men from the Massachusetts reformatory and 457 from the Prison Camp and Hospital at Rutland, were assisted as follows: Railroad fares to homes or places of employment, \$1,996.67; board while seeking work, \$2,420.24; clothing, \$1,284.01; tools, \$194.65; miscellaneous purposes, \$32.75; total, \$5,928.42. One hundred and sixty-three men from the state prison, 129 of whom came out last year, were aided as follows: Railroad fares, \$352.34; board and family stores, \$1,021.20; clothing, \$353.31; tools, \$100.21; miscellaneous, \$33.50; total, \$1,860.56. In addition to these who were aided from the state appropriations, 463 others, released from the jails, houses of correction, state farm, and in two cases United States prisoners, have been helped from the funds of Society for Aiding Discharged Convicts, at an expense to that society of \$1,690.12.

Of the 129 men released from the state prison last year, 5 have been returned for other offences. Four of the 5 are known to be intemperate. The report contains the following suggestion:

“Fortunately, but a small percentage of the men released from state prison or the Massachusetts Reformatory use liquor to an extent that interferes with their ability to earn a living. There is, however, a very large number constantly coming out of the jails and houses of correction and from the state farm who by their habits of intemperance are deprived of employment and are ever shifting from place to place. If a permanent home could be established for these unfortunate human derelicts, where they could not obtain liquor, and where they would be obliged to live indefinitely, doing such work as might be provided by intelligent overseers, I believe it would tend much to purify our cities. The money that is expended for their repeated arrests and conviction, under the present plan of dealing with them, would be saved; and this, with what labor they might learn to do, would contribute towards their support. Furthermore, the existence of such a resort might tend to keep away some of the undesirable population who now gather in the cities in constantly increasing numbers.”

DEFECTIVE DELINQUENTS AND THE NEW YORK ASSOCIATION

The New York Times printed recently the following:

The Prison Association of New York is taking up the study of mentally deficient criminals, and has appointed several committees to inquire into what can be done to deal with their cases. An average of nearly four out of ten inmates of Elmira Reformatory are below the ordinary standard of intelligence and are not able to take advantage of the institution, but there is no place to which they can be sent except such establishments as Dannemora State Hospital for the Insane, where association with hardened criminals will destroy all hope of their reformation. The Prison Association believes that special institutions should be established for the delinquents.

At a meeting of the Committee on Defective Delinquents, held last Thursday, a letter from Dr. Frank Christian, senior physician of the Elmira Reformatory, was read, in which it was stated:

Daily contact with our inmates must impress one that a large proportion are far below a normal status. Our examinations show 39 per cent. mentally defective and 70 per cent. below a normal physical standard. We have always made allowance for these defectives and have excused their failures in school and overlooked their shortcomings in deportment. The superintendent of the reformatory has recommended that a law be passed at the present session of the Legislature allowing us to transfer the imbeciles to a custodial asylum. They really have no place in a reformatory, and are a hindrance to its work for the brighter boys.

Dr. Robert E. Lamb, Superintendent of Matteawan State Hospital for the Insane, has also written to the Prison Association stating that certain cases under his care are "practically on the border line between criminal and lunatic, sometimes with intermixing of the two," and declaring that proper study of this class of criminals would be of service to the commonwealth. Dr. North, Superintendent of the Dannemora State Hospital for the Insane, in advocating a thorough study of the delinquent, especially the adolescent delinquent, from this point of view, has said:

"From time to time we receive patients from the reformatories who are so defective that they could not by any possibility enter the reformatory

routine and benefit by it. As they are under sentence, there is no place for them but this institution, but here they meet more hardened criminals, and while we can improve their condition in some ways, their stay in a hospital of this character should not be prolonged. Had they been recognized as defective at the time of trial, as it would seem that they should have been, they could have been more suitably provided for elsewhere.”

At the meeting of the Prison Association’s Committee, Joseph P. Beyers, ex-Superintendent of the House of Refuge, Randall’s Island, argued that every juvenile reformatory should have expert advice available on the mental development of its inmates, and Ernest K. Coulter, clerk of the Children’s Court, and Thomas D. Walsh, Superintendent of the Children’s Society, gave information of the work done for defective children.

WORK OF THE “HOPPER HOME.”

An interesting feature of the work of “The Women’s Prison Association,” New York, is the “Hopper Home,” situated at 110 Second avenue. The first “Home” of the Association was opened in June, 1845, “as a place of shelter for liberated female prisoners.” It was before the day of the sewing machine and ready-made clothing was not thought of in those days. This was the main industry. The association was very poor and at one time had but two cents in the treasury. It was then that Miss Catherine M. Sedgwick, the first director, said: “Well, Mrs. Gibbons, I think even you will be ready to give up now.”

But Mrs. Gibbons answered, “When you are ready to give up, I am ready to take up,” and she went out that afternoon and raised eighteen hundred dollars, with which she stocked workroom and larder. From that time there was no talk of “giving up.”

For many years the main source of income has been the laundry. The treatment of inmates consists of work in the laundry as soon as possible, good food and general hygienic care. When a woman applies for admission, the understanding is that she shall give a month’s labor to the institution. At the end of that time she is generally in good condition and is sent out to service, preferably to the country. Often she remains in her place for many

months and sometimes even for years, returning from time to time to make additions to her bankbook, the policy being to encourage such thrift.

That the habit of drink is a disease requiring prolonged treatment is an accepted fact in these days, and it is for this reason that the “Women’s Prison Association” has obtained by act of legislature an appropriation for a state farm for women misdemeanants over thirty years of age. It hopes, by outdoor work, medical attendance and good food to make many of them self-respecting as well as self-supporting members of society.

The average amount earned by eighty-eight women during the year previous to their entrance to the “Home” was \$91.37. The average amount the same women are capable of earning per year is \$207.36.

Our sixty-sixth Annual Report presents full statistics of our work.

SARAH H. EMERSON.

SOME RESULTS AT BEDFORD (NEW YORK STATE) REFORMATION FOR WOMEN.

What has been accomplished with a thousand girls committed to her institution is shown in the Survey for Feb. 18, 1911, by Katherine B. Davis, superintendent of the New York State Reformatory for women, situated at Bedford. Miss Davis prefaces her article with the following statement: “Now, there is nothing quite so difficult to measure in figures as change in character. We can say how many have kept their parole; how many we know have been re-arrested; of how many we know the whereabouts and believe them to be doing well; but the changes in character, the establishment of higher ideals, the doing of more efficient work as a result of the training received, these things can never be measured.” This inability to measure results is regarded by Miss Davis as the weak point in our reformatory system.

The first of the 1,000 commitments dealt with by Miss Davis was received at Bedford May 11, 1901; the last November 26, 1909. The percentage of foreign born is 29.1, of whites born in the United States 52.7, and of colored born in the United States 18.2. Twenty-two and one-tenth per cent. were committed for misdemeanors, 26.4 per cent. for felonies, and 51.5 per

cent. for other offences, such as being a common prostitute, habitual drunkenness, etc.

So much for the nature of the thousand cases. In November, 1910, the disposition which had been made of these cases was as follows:

Paroled	668
Still in institution	111
Escaped	3
Died in institution	12
Transferred	47
Deported	16
Served entire term	80
Discharged by court	63

It will be noted that 668 out of the thousand cases have been paroled. The status of these 668 in November, 1910, was as follows:

On parole	110
Discharged, having done well	393
Violated parole, not found	52
Broke parole and returned	102
Transferred to Auburn Prison while on parole	1
Discharged by court while on parole	2
Died on parole	8

Immorality has been the largest single cause of violation of parole. A comparison of those placed with their families and those placed in positions at the time of their parole shows that the percentage of the former who violate their paroles is twice as great as that of the latter. This is not surprising when it is reflected that if home conditions had been what they should be, the girl might not have come to the reformatory in the first place.

The following table shows the present status of the 393 girls who did well on parole and received their discharges:

Known to be doing well	127
Known to have criminal record	38

Known to have been immoral	53
Known to drink	9
Dead	12
Whereabouts unknown	154

The occupations of those who are doing well are as follows:

Married (44 since leaving here)	58
Dressmakers	3
Keep house for members of family	3
Assist at home	6
Nurse	1
Office clerks	2
Salvation Army officer	1
Laundry	1
In sanatorium in poor health	1
Attendant Institution	1
Piano accompanist	1
Factory operatives	6
Saleswomen	5
Domestic service	38

In conclusion Miss Davis points out that one reason why the results are not more satisfactory than they are is the fact that the period of legal control which the reformatory has over a girl is fixed at three years. In the case of a girl of the worse sort it may be over two years before the reformatory can begin to exercise an influence over her. The period of its after-supervision is then inadequate to secure effective results. The reformatory should be allowed, Miss Davis thinks, at least one year of after-supervision, no matter what the length of confinement may be.

REGULAR EMPLOYMENT NOT GOOD FOR DISCHARGED PRISONERS

The Home of Industry for Discharged Prisoners of Philadelphia, Pa., which was organized in 1889 to provide a home and employment for released prisoners, cared for 73 men during the year 1910. These men were given board, lodging, and an additional money remuneration for employment provided them by the organization. This is accomplished at a financial loss which is met by state appropriations, donations, etc. The work provided consists of making brooms, caning chairs, etc., the products being placed upon the market. The Board of Managers, in its annual report says:

“It is our firm conviction that it is a radical error to place a man in regular employment as soon as he leaves prison. There should be a probationary, or convalescent, period in every case. The Home of Industry for Discharged Prisoners provides a retreat for just such a period, where the man can be rebuilt. When he shows by his actions, outside of prison walls, that he is worthy to be recommended it will be quite time enough for the philanthropic to assume sponsorship. The best part of it all is that no sponsorship is then needed, for the man is quite capable of taking care of himself.”

CONCERNING OUR LIST OF SOCIETIES.

In the issue of January, 1911, THE REVIEW published a list of societies engaged in prisoners' aid work, with a request that corrections and additions be sent to the editors. This request is repeated at this time. Instead of the Kansas and Missouri divisions of the Society for the Friendless, the following should have appeared:

The Massachusetts House of Representatives recently refused by an overwhelming vote, to substitute for an adverse committee report two bills relating to capital punishment—one giving the jury the right to say whether the penalty for murder in the first degree should be life imprisonment or death, and the other providing that the punishment should be life imprisonment.

Opposes Walking Chained Prisoners Through Streets.—Dr. Elizabeth Cassidy, of Denver, Colorado, is urging the board of county commissioners to provide means for transporting prisoners from the courthouse to the county jail, other than walking them along the streets chained together.

“That system is a relic of barbarism,” declares Dr. Cassidy. “Persons sentenced for vagrancy and other minor offenses should not be chained together like criminals and be subjected to public gaze.”

The recommendation of the Ohio legislative committee, as reported in the last issue of THE REVIEW, that a joint reformatory and prison for women, under a management separate from that of the penitentiary, be built without delay, has obtained the approval of Gov. Harmon. In a recent message to the legislature he urged that appropriations be made for such an institution.

Kansas-Missouri Division.—Rev. Edward A. Fredenhagen, General Superintendent; Mrs. Edward A. Fredenhagen, General Matron; Rev. J. O. Stutsman, General Superintendent’s Assistant. District Superintendents, Rev. George S. Ricker, Wichita; Rev. Jonathan Staley, Salina; Rev. Benj. Porter White, Topeka; Rev. James B. Bollman, Kansas City; Rev. Taylor Bernard, St. Louis.

The officers of the National Society for the Friendless follow: President, Judge T. F. Garver, Topeka; Vice-President, Ex-Mayor Henry M. Beardsley, Kansas City; Secretary and National Superintendent, Rev. Edward A. Fredenhagen, Kansas City; Treasurer, Cashier James T. Bradley, Kansas City; National Matron, Mrs. Edward A. Fredenhagen, Kansas City.

EVENTS IN BRIEF

[Under this heading will appear each month numerous paragraphs of general interest, relating to the prison field and the treatment of the delinquent.]

Prisoners Idle; Insanity Growing.—Hundreds of prisoners idle, discipline ruined, disease spreading and insanity increasing, are the results affecting the Ohio penitentiary brought about by a law passed in 1906, publicly declare prison officials in that state. The startling situation was graphically described recently by the Cleveland (O.) *Plain Dealer*, in part as follows:

“Penitentiary officials are facing a critical situation, resulting from the constantly increasing number of prisoners they are compelled to confine in the idle house. More discouraging than the existing conditions is the prospect that, in six months at the outside, practically all the prisoners will be idle. Conditions cannot improve; they will become graver and graver unless relief is given during the present session of the legislature.

“In the meantime, on an average 300 men spend twelve hours each day on the benches in the idle house. This number is augmented on days when the weather does not permit working the prisoners about the yard. In one month, when the last contract expires, another hundred will join these ranks. In six months at the most, when all the contracts will have been cleaned up, all save the men employed in the administration of the big prison, which means about 1,000, will be idling. All the contracts but one have expired; yet most of the men employed in most of the old shops are still at work. This comes about only through sufferance; the companies holding contracts are being allowed to work up the raw material they had on hand at the expiration of their contracts. This keeps a few men going, but at best is only putting further away the problem that must be faced.

“Since Dec. 1, more prisoners have become insane than during any average eight months before the condition arose. In a little over one month, eight

men have been taken to the prison asylum. When all were working, there was seldom more than an average of one a month who became insane, and usually it averaged less. This prison officials attribute directly to increased idleness. Moreover, discipline is more or less ruined. The men, sitting day after day, with nothing to do but to stare at the ceiling and turn over in their minds their misfortunes, are gradually becoming more and more morose, sullen and ugly. Not a day passes but that prisoners approach the guards and beg to be set at work. Guards, their hands tied by the legislature, are powerless to help. Nothing awaits the prisoner but a refusal.

“The air in the room is necessarily foul from the exhalations of these 400 men. Blazing coal stoves at frequent intervals keep the room at a temperature which, to one going in from the outside, is nothing short of sickening. The benches themselves are rather narrow, with twelve or fourteen-inch backs, which, from all appearances, would become very hard and uncomfortable in little or no time. The floor is sprinkled with lime at intervals, but after the men have marched in in the morning presents a dirty gray appearance—that of a thick coat of dirt covered over with whitewash, mud from innumerable pairs of boots tracked into it. Wooden boxes, filled with shavings, do duty as cuspidors. The men, fortunately, are allowed the consolation of a chew, and to chew one must, in plain English, spit. Yet the possibilities of acquiring disease are fearful to contemplate.

“Papers and magazines, with a liberal sprinkling of missionary tracts, are furnished. Most are necessarily out of date, and all are grimy with much handling. Those facing the windows read with certain injury to their eyes; those in the center of the room have not light enough to read at all, while the few at the rear of the room, who have light from the rear, can read with comfort. But at least half of these idlers are foreigners and cannot read at all; these can think. Such are the physical surroundings in this room, intended to house two-score and at present containing 300 to 400, with several hundred more to be added in the next few months.

“These men it is who each day beg to be put to work. They feel that to be put to work. They feel that the hardest drudgery, indoors or out, would be far preferable to such an existence.

“The cause? A simple one, say those at the head of the big prison, notably Warden T. H. B. Jones and Capt. C. W. Naas, who had charge of the

contracts. They tell it in three words. The Wertz law. In 1906 the legislature passed this act, which just now is working such havoc with the penal institution. The law abolishes contract labor, at the demand of labor organizations that competition with prison made goods was unfair to labor. It provides that convicts must be employed in remodeling the institution and in making only such goods as are used in state institutions. The legislature neglected to provide money for installing machinery necessary for so doing and also neglected to compel state institutions to use the prison made product.”

Unusual Prison Supervision Proposed in Texas.—By a bill now pending before the legislature of Texas it is proposed to place at the head of the penal system of the state an officer with the title of “Supervisor of Prisons,” who shall have had some scientific training in the subjects of criminology and prison sanitation. His salary is to be \$2,400 a year and his term of service to be two years. The office is to be an appointive one, made on the recommendation of the prison commission. Two assistant supervisors may also be appointed, at salaries of \$1,500 each.

It shall be the duty of the supervisor to visit at least once each year every county jail, city jail, reformatory, juvenile training school, county and city convict farm and alms house in the state. His business shall be to enforce the humane and economic management of such institutions and to aid in securing erection of sanitary buildings for the accommodation of the prisoners. He shall have power to investigate the management of all such institutions and the conduct and efficiency of persons charged with their management. Reports shall be made of such investigations to the governor and to the local authorities, together with orders relative to improvements which in his judgment shall be required. And it shall be the duty of said courts of county commissioners, city commissioners or boards of aldermen to obey such order, and provide for the payment of the expenses incurred necessary to a compliance with said order out of the funds of the county or city or by issuing county or city warrants for this expense.

The power of summoning witnesses, administering oaths and taking testimony is conferred upon the supervisor and his deputies to enable the

conducting of such investigations as are provided for in the bill. It is intended also that the evidence of prisoners or ex-prisoners shall be taken when necessary to ascertain the facts about the management or condition of penal institutions.

When the interests of the inmates of any institution demand it the supervisor may order their removal to other quarters, the expenses of the transfer to be borne by the city or county. And fines for the refusal by city or county officers to obey such orders are provided for.

Special provisions are made for the assistance and rehabilitation of paroled prisoners, data in reference to whom shall be kept on file in the supervisor's office. Local probation officers, serving without pay, shall assist in this work.

The Jails of Illinois.—The *Chicago Tribune*, commenting on the recent report of the Illinois board of state charities that “conditions in most Illinois jails are no better now than in 1870, when they were abominable,” says that no one will venture to question the accuracy of the report.

“These and other shameful violations of law,” continues the *Tribune*, “have been unnoticed and unchecked by successive grand juries and judges. And what is sadder yet, there has been no popular protest anywhere against the jail horrors and abominations set out in the report of the state charities commission. Even in countries where the odious jail conditions are well understood there is no public opinion which condemns them. Must we conclude that local self government as far as jails are concerned is a failure, and that some humane and intelligent central authority should take the matter in hand and enforce obedience to the laws?”

That uncivilized portions of humanity still seem to exist when jails are under consideration is evidenced by a Kansas newspaper editorial on the Illinois report, part of which we print.

“From the state charities commission of Illinois comes the latest wail about jails which are not up to Waldorf-Astoria standards. In fact, it is claimed that the jails are as bad as they were thirty years ago, when they were not

suitable to the whims of any high-class jail bird, who was accustomed to all the comforts of home and modern conveniences.

“In view of the fact that a number of more or less prominent citizens of the state seem to be threatened with a sojourn in the prisons of that state, the plea for better plumbing and lace curtains is in order. But, as a general proposition, these wails for the downtrodden prisoners are overworked a good deal. While it is nice to talk about Reform, and not punishment, being the object of prison sentences, the facts are that it is hard to obtain the one result without the other.

“If all the suggestions of the prison reformers would be followed out explicitly, and to their logical conclusion, the jails would soon become such gilded palaces of sin that most of us would put up there from choice, and it would be difficult for the hotel keepers to make a living, or the waiters to get rich. And, when the jails finally were accepted as the highest standard of luxury, the kicking against them by the downtrodden prisoners who broke into a feed store in order to get a comfortable home for the winter, would continue.”

We beg to dissent from the Kansas authority, and still maintain that reform *as well as* punishment is the purpose of imprisonment, and that torture and filth and vice are not conducive to the progress of society.

The St. Louis (Missouri) *Star*, commenting on the Illinois report, says:

“If such a board made so little impress upon the actualities of prison management in Illinois in forty years, it is discouraging indeed.

“It is no wonder that such papers as *The Star* fail to impress upon the people of Missouri the need for a different penal system in this state and an entirely different character of prisons.

“For years we have been preaching the doctrine of the reformatory principle in prison management, of proper industry, of sanitary prisons, of segregation of prisoners into classes, of plenty of outdoor work for prisoners, of instruction in trades, of reformatory influences tending to keep men out of the penitentiary after they have been released, and of proper local jails and places of detention.

“Yet the same dark ages this commission asserts to rule in Illinois hold sway in Missouri, with little promise of abdication. Governor Hadley has

recommended one reform, the establishment of an intermediate prison for first offenders, which should by all means be done, though this is but one of the many reforms necessary to take us even within sight of the outer confines of the dark ages.

“Yet, discouraging as is the progress made, sociologists and penologists will not cease their campaign of education on this subject of prison reform and the treatment of criminals as individuals and not as a class. The light will be seen in time.”

“*Men With a Past.*”—Under this title an editorial in the *New York World* continues:

“A Brooklyn lawyer, suspended from practice, who disappeared seven years ago and was thought to have committed suicide, reappears as the leader of the minority in the Michigan Senate. The Chief of Police at Danville, Va., is recognized after many years as an escaped convict under sentence in Georgia.

“During the recent political campaign a candidate for governor in a western state was identified as one who in youth had participated in a crime of violence on the Texas border. The governor-elect of a southern state proves in infancy to have been a foundling.

“It is pleasing to note that in every one of these cases identity was admitted and that the honorable record of after-life was generally accepted as atoning for early misdeeds or obscure origin. Exposure, therefore, while painful in some instances, has not operated to discourage those who in many other places are seeking honestly and industriously to overcome the disadvantages of a bad start.

“Experiences such as these give heart to optimists, furnish prison-reformers with ever-increasing zeal and prove the genuineness of a democracy which does not dwell unduly upon the past of anybody or anything.”

Tramps, Stop Tramping!—The following article is making the rounds of the local newspapers in Pennsylvania, evidently “accelerated” by the tramp nuisance:

“The damage done by tramps to the railroad property every year is estimated at \$25,000,000. The damage to private property which the tramps reach by railroad is probably far greater. If it were not for ‘ride stealing’—this is the assertion of men who have spent years studying the vagrancy problem—the ‘hobo’ could be practically put out of business. Free transportation is an absolute necessity of the profession.

“The ‘hobo’ may seem highly amusing to the readers of comic papers; and he is a valuable source of income to joke-smiths and the artists who draw fantastic pictures of the ‘Weary Willie’ begging a piece of pie. But he is no joke to railroad men. For he is continually breaking into cars, assaulting employes, or tampering with equipment in a way to endanger the lives of passengers.

“The Lehigh Valley has been one of the most active among railroads attempting to end the abuse, but the leniency of local magistrates has operated in the tramps’ favor. To put a tramp in jail is expensive for a small community; the authorities usually content themselves by telling the offenders to ‘move on.’ Thus he is merely dumped upon some other community. The practice works as an endless chain—each town passing on its tramps and in turn receiving the tramps that have been passed on by other towns.

“Some charity organizations have interested themselves in the problem, and seek to co-operate with the railroads in bringing trespassers to justice. Compulsory labor of some kind it is thought would be the most powerful deterrent, but that remedy meets the opposition of the labor unions; they say it would be putting ‘convict labor’ into competition with honest workingmen. A helpful move would be for the state to relieve local governments from the expense of punishing offenders, as the cost of keeping a tramp supplies the most powerful motive for the magistrate to let him go.”

In this connection, the annual report of the New York State Board of Charities is significant. It renews its recommendation, made to the legislature of 1910, for the establishment of a farm colony for tramps and

vagrants. It points out that these classes are now kept practically in idleness in the penitentiaries, jails and workhouses at an annual cost of \$2,000,000, whereas, following the example of a number of the countries in Europe, they could be humanely maintained and cared for in farm colonies, which could be made self-supporting through their labor.

Public Defenders Wanted in Cleveland.—The Legal Aid Society of Cleveland, Ohio, is reviving a plan for the appointment of assistants to the county prosecutor, whose work shall be the defense in common pleas court of persons unable to employ counsel. Under the present system the judges of the common pleas court appoint counsel for impecunious defendants in criminal cases. The ground that better talent will be thus. The appointment of special public defenders is urged on the ground that better talent will be thus secured, and the interests of accused persons better safeguarded.

A plan for the appointment of such public defenders for impecunious persons tried in the police courts was recently rejected in Cleveland. The ground taken was that the so-called prosecutor is theoretically charged not with prosecuting the accused, but with bringing out all the facts in his case, both those favorable and unfavorable. The “prosecutor” was, therefore, held to be both prosecutor and defender.

A “Going Concern.”—According to the Detroit (Mich.) *Journal*, the city of Detroit has derived \$399,000 profit from the House of Correction in the last twelve years. The newspaper account reads as follows:

	Net Book	Paid City
Year	Profits	in Cash
1900	\$ 42,759	\$ 60,000
1901	36,478	48,000
1902	26,179	26,000
1903	32,016	22,000
1904	25,533	28,000
1905	27,587	25,000
1906	42,905	25,000

1907	39,182	35,000
1908	32,663	35,000
1909	38,577	30,000
1910	24,355	40,000
1911		25,000

Totals \$ 368,234 \$ 399,000

In 12 years the Detroit House of Correction has turned \$399,000 into the coffers of the city treasurer. This amount represents the profits from the industrial work which the prisoners turn out.

Brooms, chairs and other articles are manufactured in the workhouse, most of the work being done by prisoners who are sentenced to serve from ten days to six months in the “works” for minor offences.

This splendid showing of profits is due largely to the excellent business management of the house of correction.

It will be noticed that the book profits shown are often larger than the amounts turned into the city treasurer, but this is due to the fact that minor items of maintenance are charged against the book profits from one end of the year to the other. The fiscal year at the house of correction ends on Dec. 1, therefore the net book profits shown in the table above must be checked against the amounts paid to the city the year following.

“The reason that the house of correction profits are not so large in the years following 1900 is due to the fact that beginning with 1901 we started a system of paying part of the earnings to the prisoners.” said Supt. John L. McDonnell.

“This week we turn over \$20,000 to the city from the fiscal year ending Dec. 31, 1910. Last July, the poor commission needing funds, we were asked to turn over \$5,000 from the probable profits of 1910. We did so, and that sum added to the \$20,000 to be paid over this week constitutes the \$25,000 profit to the city for 1910.”

An important addition to the newspaper statement is the fact that the products of the House of Correction are disposed of in the open market by the Superintendent.

The Problem of the Home for Discharged Prisoners.—The following statement is from the New Britain (Conn.) *Record* of February 21st:

34 West 28th Street, New York City.
February 20th, 1911.

To the Editor of "*The Daily Record*,"
New Britain, Conn.

Dear Sir—In the column entitled "Town Talk," in the New Britain *Record*, published February 17th, there is an editorial which contrasts my opinion on the treatment of the one-time prisoner with that of Warden Garvin, of the Connecticut state prison. I should be glad if you will permit me the opportunity of answering this criticism in your columns. Warden Garvin is a friend of mine and has welcomed me several times to his prison. I have much respect for him as a prison warden and I know that he most thoroughly endorses my work. Of course it is quite possible for the best of friends to agree to differ, but I am inclined to think that the statement from Warden Garvin, which was admittedly made several years ago, might possibly be altered now that he knows more upon this question.

It must be remembered that the prison warden speaks from within the walls and that even the most capable and most experienced of them have not been out into the world with these men, watching their careers or fighting their battles. If I were but a beginner in this work with a couple of years' experience, I might feel nervous in crossing swords in an argument with so well known a prison man, but it must be remembered that I have had sixteen years' experience and that in that time I have undertaken the future of many thousands of men. I speak not from theory, but from practical fact.

Now, it is stated that there are those whose opinions differ with mine in that they think homes for the discharged prisoner inadvisable. I presume their theory is that when the prisoner comes from prison he should not be associated with other one-time prisoners. But what is the alternative? If these men come from prison with the pittance allowed by the prison, where are they to go? Five dollars does not last long. To eke it out as far as they can, they go to board in the poorest lodging house of the city. That brings them down into the saloon neighborhood and throws them at once into the

most undesirable classes. They are once more in the element where they will meet thieves, drunkards and outcasts; not like my Hope Hall boys, anxious to reform, but with those still living crooked lives. They virtually go back to associate with the old companions, but old companions who have not started on the right way. This argument would, I suppose, be met with the statement that that is not the idea of those who advise against homes, but that their idea is that a man leaving state prison should go straight to a position, go to board in a respectable place, and at once better his condition. This would be admirable if it could be carried out, but I have found that people are slow to throw open their doors to the one-time prisoner. When we have taken men to our homes, have tested them, can speak from personal acquaintance of their capacity and their sincerity, our friends are much more ready to trust them and give them a position than if we said: "There's a man in the prison cell today. We do not know anything about him, but we would like you to put him in your factory tomorrow."

Again Warden Garvin speaks for Connecticut. He has a very different population to deal with in your small state prison from the great population crowded in many of our all too unsanitary prisons of New York, New Jersey, etc. I have had scores of men come to me from state prison whose long prison terms had absolutely incapacitated them for work. Shattered nervously and physically, they have crept out into the world afraid to face the unfriendly crowd. I have taken men from prison who were blind with blindness that had come to them within those dread shadows. I have taken men discharged from the prison hospital so weak that months of nursing has been necessary to put them into condition for work. I have taken men who have been twenty, thirty, and even forty-eight years within the walls.

After all, facts speak louder than theories, and we have the facts to show. It will be a great joy to me if some of your readers feel interested enough in this work to help me by offering positions for my boys. Hope Hall is not a permanent residence but merely a stepping stone to the place in life where men can lose their identity and take up their places as humble units in the great busy working world.

Hoping that I have not imposed upon your space and patience, believe me,

Very truly yours for our country's
prisoners,

MAUD B. BOOTH.

“Millionaire Tramp” Discards His Overalls.—His old slouch hat, coarse brogans, bandanna handkerchief, and blue-jean overalls have been laid aside, and the “millionaire tramp,” or “man without a dime,” as he has become known to the newspapers of the country, has finished a two years’ traveling study of the life of the homeless and penniless men in fifty cities in the United States. The “millionaire tramp” is Edwin A. Brown, and is a cousin of W. C. Brown, president of the New York Central lines, with whom he was once in the ranch business in Colorado.

Mr. Brown will put into book form the result of his country-wide investigation, in the hope that municipalities will awaken to the “crying needs of shelter homes for the friendless and penniless.” The things he has seen during the last two years have convinced him that all of the cities which he visited, and scores of others, should have municipal lodging houses, like the one in New York City. He would have such institutions furnish clean beds, adequate ventilation, satisfying meals, shower baths, and medical inspection, so that the sick could be separated from the well. The municipal lodging house in New York City furnishes these things and is capable of sheltering a thousand men and fifty women.

A bitterly cold night, a thinly clad boy, a request for the price of a bed—it was this that prompted Mr. Brown to his two years’ life as a student hobo. He found that in his own city the prison was being used for a lodging house. In the course of his travels he “found men sleeping in brick ovens, under platforms, in freight cars and roundhouses and many of them carried the banner—that is, they walked the street all night.

“The hospitals were overcrowded for the reason that there was no municipal lodging house. The same condition exists in Chicago today. Charitable hospitals are overcrowded with men because they have been made sick on account of exposure and the lack of nourishing food. The best way to keep a man from getting sick—I mean the poor unfortunate without a home—is to house and feed him properly. New York has solved this problem with its

beautiful municipal emergency home, six stories in height and a model in every respect.”

Both Mr. Brown and his wife will soon go to Europe to investigate conditions of the homeless there.

Advocates Drastic Treatment of Criminal Immigrants.—Drastic measures to suppress crime among the foreign population of New York City, and to prevent the further immigration into this country of foreign criminals, are advocated by Judge Lewis L. Fawcett, of the County Court, Brooklyn, who recently sentenced two Italian kidnappers to long terms in prison, and who has in the last four years received at least thirty threatening letters from the friends of accused persons.

The government, said Judge Fawcett in a recent newspaper interview, should demand that every foreigner who lands here produce a certificate of good character from the chief of police of the district from which he comes. Immigrants without such certificate should immediately be deported. If the newcomer has served time for some trivial offense, the fact should be stated on the certificate, and the period of residence in this country required before the immigrant can take out naturalization papers should be lengthened in proportion to the seriousness of this previous offense. When a foreign criminal is convicted here and sentenced, said Judge Fawcett, the judge who administers his punishment should have by law the right to deport him, at his own discretion, when he has served his term.

Chicago Wants a Hospital for Inebriates.—A hospital or reformatory for inebriates is likely to be established in Chicago soon. The scheme contemplates the turning over of the old John Worthy School, adjoining the house of correction, to the police authorities, and the sending of the boys who are there to St. Charles or another suitable institution downstate.

“The thing both Inspector Clancy and I have in mind,” said Chief of Police Steward, “is a sort of a poor man’s sanitarium. At the present time Chicago, the second largest city in the country, has not a single institution to which it can send its destitute ‘drunks’ for treatment. The hospitals won’t receive them and the jails are not the proper place for them. We want a place where habitual drunkards can be detained and kept under the care of nurses and physicians. They will be serving a sentence, but all the time they are incarcerated they will be receiving treatment which will send them out into the streets again physically fit to fight their temptations.”

Sing Sing (N. Y.) Prison Called a Death Trap.—The State Commission of Prisons says a long sentence to Sing Sing is often a sentence to slow death because of the prevalence of tuberculosis. Many prisoners are discharged incapacitated to earn a living and frequently on leaving Sing Sing spread tuberculosis. The cell capacity there is 1,200, but the average number of prisoners during the year was 1,850. About 500 are housed in one of the chapels and in the loft of the work shops.

“The cells are deficient in ventilation and light and in them the prisoners have to spend fourteen out of the twenty-four hours. The drainage is necessarily insufficient and the entire structure is worn out. The determination to abandon it is fully justified.”

Progress of Probation in New York State.—Forty new salaried positions of probation officer were created or filled in New York State during 1910. This is the largest increase in the number of paid probation officers ever made in that state in a single year. It brought the number of paid positions in existence on December 31, 1910, up to 105. Most of the newly established officers were in New York city, and were the result of legislation secured by the Page Commission. Three of these positions were chief probation officerships, one in each of the two boards of city magistrates, and one in the court of special sessions, which includes the children’s courts. The

number of children's courts in greater New York was increased by the Page Commission law from two to four, and the new law required that each of these courts should have the services of paid probation officers. This is an innovation in New York City, since the work among children in these courts has previously been carried on by volunteers and private societies. Another improvement effected by the Page Commission was the removal of all policemen serving as probation officers in the lower courts. Twenty-eight such officers were removed on August 30th, and the law provides that hereafter no members of the police force can be used in probation work. This is a fitting climax to the long series of adverse criticisms which have been made by numerous bodies, including two state probation commissions, of the use of policemen for probation duties.

Several states now have laws forbidding police officers from serving as probation officers. Massachusetts has a law to the effect that active members of the police force can not act as probation officers, and a bill recently introduced in the Legislature of that state at the instance of the state probation commission seeks to make sheriffs, clerks of the court, bail commissioners and other similar officials ineligible for probation work.

Judge Wants Better Probation Officers and More Work for Them.—Approval by the Commission on Probation of all probation officers appointed by the courts, and the extension of the probation system to obviate imprisonment for non-payment of fine, were two changes urged recently in an address by Judge Charles A. DeCourcy, of Lawrence, Mass. “The keystone of the probation system,” said Judge DeCourcy, “is the personality of the probation officers. As the Departmental Committee under the English probation law recently expressed it, ‘the probation officer must be a picked man or woman endowed not only with intelligence and zeal, but in a high degree with sympathy and tact and firmness.’ When a properly qualified and earnest probation officer is attached to every court in Massachusetts, the probation problem will be solved.

“Unfortunately, we have yet some probation officers who fail to come up to the standard, men who never interest themselves in their probationers outside of the courtroom, or take any concern as to their idleness, their

companionship or habits, and do nothing to secure the confidence of the probationer or to aid him in restoring himself to manhood and good citizenship. The evils of continuing improper officers are so great that in my opinion it should be rendered impossible by requiring the approval by the Commission on Probation of all probation officers appointed by the court.

“Probation ought to be extended also, to obviate the imprisonment for non-payment of fines, giving the person fined an opportunity to earn and pay the fine while remaining at home and supporting his family.

“Another element new to Massachusetts will require consideration, namely, the proposed payment to the prisoners as a means of aiding in the support of their families during imprisonment and providing them with some means to start in life when they return to freedom. I should like to see an able commission appointed to consider and report on this whole broad question of prisons, so that in this, as in other respects, Massachusetts might lead the way with plans for an ideal system which the future will develop.”

Some Side-Lights on New Jersey Prisoners.—Next to the United States, Italy is the birthplace of more prisoners at present confined in the New Jersey State Prison, at Trenton, than any other country. Out of 1,393 prisoners remaining in the institution on October 31, 1910, 910 were born in the United States, 205 in Italy, 56 in Germany, 39 in Hungary, 36 in Russia, Poland, 30 in Russia, and 29 in Austria. Nearly half of the total were, when received by the institution, between the ages of twenty and thirty years. Six hundred and twenty-five were of this age, 366 were between thirty and forty, and 167 were between forty and fifty. One hundred and twenty-six were between fifteen and twenty. Two hundred and six can neither read nor write.

During the year ended October 31, 1910, 516 persons were received by the institution, and 110 were paroled. During the five years of the operation of the parole law, 1,266 prisoners have been paroled. Seventy-two of these have been again convicted and committed to this prison, 71 have had their paroles revoked, and 24 have been returned for violation of parole.

Stereoptican lectures on historical and civic subjects have been given on legal holidays. The report of the prison board states that although 300 men have been gathered together in a darkened room on such occasions, there has not been a single instance of misconduct during the lectures.

Study of Tuberculosis in Prisons.—A partial investigation is being made by the Central Howard Association of Chicago in regard to the prevalence of tuberculosis in prisons. In an inquiry sent out the question was asked: “How many inmates are affected, *in any degree*, with tuberculosis?” Seventy-four replies gave a total of 834 cases. One institution gave sixty as the number affected with tuberculosis, while the same report stated that an additional 300 had “symptoms” of the disease. The next highest number given by one institution was 49. Few admitted to more than ten or twelve, and some stated that no cases were known. It is believed that many cases of tuberculosis exist which are not detected by the average prison physician, and also that each state is reluctant to admit the full proportion of inmates afflicted. In most cases, probably, the reports gave only the number in the hospital. Even though many prisoners may have had incipient tuberculosis before entering prison (wherefore the institution should not be held responsible) it would be of much public interest to know just how many are affected in “any degree.” Will somebody suggest a method by which the actual facts may be secured?

F. E. L.

San Quentin May be Made a Reformatory.—Last month THE REVIEW stated that the California legislature was considering a bill providing for the establishment of a reformatory for first offenders. Now comes news of another bill which seeks to convert San Quentin prison into such a reformatory, thereby making Folsom the only penitentiary in the state. The bill, it is reported, seeks the reform of young criminals by setting aside San Quentin as a reformatory to which will be sent after July 4 next all female

prisoners and all males, except those convicted of murder or treason, who at the time of commitment are between the ages of 16 and 30 years and who have never before been convicted of a felony.

Provision is made, however, that any person convicted of a heinous crime, robbery or burglary, may be committed either to San Quentin or Folsom. The board of prison directors may also transfer from the reformatory to Folsom prison all who seem hopeless of being reformed, and when Folsom is overcrowded to the extent of having more prisoners than cells, the board may transfer likely prisoners to the reformatory until the latter institution is not overcrowded. It is set forth that all life termers over 55 years of age in San Quentin shall not be moved. Provision is also made for putting the indeterminate sentence system into effect.

National Probation Officers' Association.—The national probation officers' association will meet in Boston from June 5th to 14th inclusive, which will be immediately before and during the sessions of the national conference of charities and correction in that city. Judge Harvey H. Baker of the Boston juvenile court is president of the association, and the secretary is Roger N. Baldwin, Security Building, St. Louis, Mo.

A Radical Step Proposed in Pennsylvania.—A bill has been prepared by Representative Alfred Marvins, of Pine County, Pennsylvania, which provides for the transference to one vast farm of 2,000 acres of all the criminal, insane and epileptic inmates cared for by the various institutions of the state. Once there these classes will be segregated. It is planned that the criminal inmates shall work the farm and make it self-supporting.

Want Branch to Extend Work of Reformation.—A bill has been presented to the Massachusetts legislature empowering the state to utilize an empty jail

in Fall River, surrounded by 12 acres of land, as a branch of the Concord reformatory. The project is favored by the local county commissioners as well as by Warren F. Spalding, secretary of the Massachusetts Prison Association. Concord reformatory is reported to have a miscellaneous population, including a considerable percentage who do not respond readily to reformatory treatment, thus tending to impair the work with the better prisoners. A need is strongly felt of some method of classifying the inmates. The utilization of the Fall River jail will also make it possible to give reformatory treatment to a greater number than now receive it.

Probation Manual.—The Massachusetts commission on probation in December published a probation manual of 61 pages. It states concisely the probation laws of that state, and gives a list of probation officers in the state. Each court in Massachusetts has the services of a paid probation officer.

Probation Commission Wanted in Pennsylvania.—Persons interested in the extension and development of the probation system in Pennsylvania are desirous of having a state probation commission similar in powers and duties to those which have been established in New York and Massachusetts. A bill has been introduced into the legislature providing for such a body consisting of five members, two of whom shall be women.

Statistics of Probation, Defectiveness, etc., in Pennsylvania Reformatory.—Greater opportunities to secure work and the increased use by the courts of the probation system, are the reasons given by the board of managers of the Pennsylvania Industrial Reformatory, at Huntingdon, Pa., for the decrease in the number of commitments to that institution during the past two years. This reformatory is designed as a place of confinement for male first

offenders between fifteen and twenty-five years of age, who have been convicted of a crime punishable under existing laws in a state prison. During 1907-8 the number of commitments was 1,046, as compared with 938 for 1909-10.

Interesting figures concerning the operation of the probation system are contained in the eleventh biennial report of the reformatory. During 1909-10 there were paroled 639 inmates. Sixty-two of these, or 9 and 7-10 per cent., violated their paroles. Forty-four of these 62 were returned to the institution, so that only 16, or two and one-half per cent. of the total number are still at large as delinquents.

Figures covering the last eleven years show that a total of 2,605 were paroled during that period, of whom 349, or 13 4-10 per cent., violated their paroles. Three and six-tenths per cent. of these are still at large.

Persons paroled with the necessary promise of employment by responsible firms are allowed to go to their places of employment unattended. Of 3,369 inmates so released during the last 14 years, only six have failed to report to their employers.

The report contains a mass of figures concerning the habits and characteristics of the 938 persons committed during 1909-10. Classified as to quality of mind, 17 are found deficient, 226 only fair, and 695 good. Thirty-nine were found to be absolutely without any moral sense, such as filial affection, sense of shame, etc., two hundred and eighty-nine were given the benefit of the doubt, 619 were ordinarily sensitive and 2 were especially sensitive.

During the two years seven inmates were transferred to insane asylums.

In Massachusetts the agent of the state prison commission spent during 1910 the sum of \$1,860.56 in aiding discharged prisoners. Aid was given to 163 men, 129 of whom left state prison last year. For railroad fares \$352.34 was spent, for board and family stores \$1,021.20, for clothing \$353.31, for tools \$100.21, and for spectacles, medicine, etc., \$33.50.

Probation Profitable Here.—A report, prepared by Judge Collins, of the City Court, Indianapolis, Ind., shows that through the probation system started by him one year ago, the city was saved \$2,663.70. The commitments to the County Jail and Workhouse numbered 1,619 in 1910, or 50 per cent less than in 1909. Out of the 1,619 commitments during the year Judge Collins estimates that 95 per cent of the victims would have served their time out in the Workhouse, making an expense on the city, besides depriving it of the fines, had it not been for the probation system. Besides saving this amount for the harboring of prisoners, over \$8,000 was paid into the probation department by prisoners who were given a chance to settle the amounts in small installments.

Prison Physician Sees Defects in Hospital.—Prison Physician Pray, of Jackson, Mich., has called to the attention of the State Prison Board of Control of Michigan the lack of facilities in the prison hospital for the segregation of contagious diseases, especially tuberculosis. Mr. Pray declares 50 per cent. of tubercular cases would not end fatally if they were taken care of in time. It is stated that an effort will be made by the board to prevent the commitment to prison of persons in the last stages of consumption.

FOOTNOTE

[A] First published In the New York World.

TRANSCRIBER'S NOTES.

1. Silently corrected simple spelling, grammar, and typographical errors.
2. Retained anachronistic and non-standard spellings as printed.
3. Page 1. Footnote moved to the end of the book.
4. Page 3. [has] changed to [had]. [before the valley has[had] been drained].

5. Page 4. [a correct dagnosis] changed to [a correct diagnosis?].
6. Page 7. [and strict dicipline] changed to [and strict discipline].
7. Page 8. [accomplished splended results] changed to [accomplished splendid results].
8. Page 10. [special institions] changed to [special institutions].
9. Page 20. [has served him term.] changed to [has served his term.].
10. Page 23. [will be segragated.] changed to [will be segregated.].

*** END OF THE PROJECT GUTENBERG EBOOK THE REVIEW,
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